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Romer, Berry

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 93

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO PUBLIC SCHOOLS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Subchapter I, Chapter 41, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 4112G. Federal law enforcement cooperation; restrictions.

(a) School resource officers and school constables are prohibited from cooperating with a federal agency in activity related to immigration enforcement unless the specific cooperation requested by a federal agency is first authorized by the Delaware Attorney General.

(b) Authorization under subsection (a) of this section must be requested by the supervising authority of the school resource officer or school constable seeking authorization for cooperation. The request for cooperation must:

(1) Be in writing.

(2) Be submitted at least 72 hours prior to the date of the activity.

(3) State the name of the enforcement agency making the request.

(4) State the reason for the request.

(5) Provide the dates and duration of the activity.

(6) Give a detailed description of the scope of the activity, including:

a. The purpose of the activity.

b. A list of records sought.

c. The names of individuals who may be impacted by the activity.

d. The manner in which the activity will be carried out.

SYNOPSIS

This Act restricts school resource officers and school constables from cooperating with federal law enforcement agencies in immigration matters without permission from the Delaware Attorney General.